

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1184

By: West (Rick)

AS INTRODUCED

An Act relating to the Oklahoma Higher Learning Access Program; amending 70 O.S. 2021, Section 2603, as amended by Section 1, Chapter 440, O.S.L. 2024 (70 O.S. Supp. 2024, Section 2603), which relates to program eligibility; modifying minimum ACT score; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 70 O.S. 2021, Section 2603, as amended by Section 1, Chapter 440, O.S.L. 2024 (70 O.S. Supp. 2024, Section 2603), is amended to read as follows:

Section 2603. A. Except as otherwise provided for in subsection B of this section and elsewhere in this section, to be eligible to participate in the Oklahoma Higher Learning Access Program and to qualify for an award which includes payment of an amount equivalent to resident tuition or other tuition pursuant to Section 2604 of this title for the first semester or other academic unit of postsecondary enrollment, a student shall:

1. Be a resident of this state or be enrolled in a school district located in this state that serves students who reside in

1 both this state and an adjacent state pursuant to a contract as
2 authorized in Section 5-117.1 of this title;

3 2. Be a United States citizen or lawfully present in the United
4 States. A student who is not a United States citizen or lawfully
5 present in the United States shall not be eligible to participate in
6 the Oklahoma Higher Learning Access Program and to qualify for an
7 award notwithstanding the provisions of Section 3242 of this title.
8 The provisions of this paragraph shall not apply to any student who
9 was enrolled in the Oklahoma Higher Learning Access Program prior to
10 the end of the 2006-2007 school year;

11 3. Have a record of satisfactory compliance with agreements
12 executed pursuant to Section 2605 of this title;

13 4. a. have graduated within the previous three (3) years
14 from a high school accredited by the State Board of
15 Education or the Oklahoma School of Science and
16 Mathematics with a minimum 2.5 cumulative grade point
17 average on a 4.0 scale for all work attempted in
18 grades nine through twelve,

19 b. have graduated within the previous three (3) years
20 from a high school not accredited by the State Board
21 of Education with a minimum 2.5 cumulative grade point
22 average on a 4.0 scale for all work attempted in
23 grades nine through twelve and have achieved a
24 composite score of ~~22~~ 19 or higher on the ACT test, or

1 c. have satisfactorily completed within the previous
2 three (3) years an educational program that was
3 provided through a means other than a public or
4 private school and have achieved a composite score of
5 ~~22~~ 19 or higher on the ACT test;

6 5. Have completed the curricular requirements for admission to
7 an institution within The Oklahoma State System of Higher Education
8 and one additional unit or set of competencies in a course that
9 meets college admission requirements; or have completed the core
10 curriculum and be seeking admission to a technology center school
11 overseen by the State Board of Career and Technology Education. The
12 curriculum requirements for admission to an institution within The
13 Oklahoma State System of Higher Education shall include two units or
14 sets of competencies in foreign or non-English language or
15 technology courses that meet the college admission requirements and
16 one unit or set of competencies of a fine arts course. Students
17 shall also have attained a 2.5 grade point average in the core
18 curriculum courses. Students who attended a high school which did
19 not offer all the core curriculum courses or students who were
20 educated by other means and were not offered all the core curriculum
21 courses shall be allowed to satisfy this curriculum requirement by
22 participating in a program approved by the Oklahoma State Regents
23 for Higher Education for remediation of high school curricular
24 deficiencies;

1 6. Have satisfied admission standards as determined by the
2 Oklahoma State Regents for Higher Education for first-time-entering
3 students for the appropriate type of institution, or, if attending a
4 private institution, have satisfied admission standards as
5 determined by the private institution. No student participating in
6 the Oklahoma Higher Learning Access Program shall be admitted into
7 an institution of higher education by special admission standards;

8 7. Have secured admission to, and enrolled in, an institution
9 which is a member of The Oklahoma State System of Higher Education,
10 a postsecondary vocational-technical program offered by a technology
11 center school that meets the requirements to be eligible for federal
12 student financial aid, or a private institution of higher learning
13 located within this state and accredited pursuant to Section 4103 of
14 this title; and

15 8. a. have established financial need according to the
16 provisions of subsection D of Section 2605 of this
17 title and standards and provisions promulgated by the
18 Oklahoma State Regents for Higher Education,

19 b. if the student was adopted between birth and twelve
20 (12) years of age while in the permanent custody of
21 the Department of Human Services, in the court-ordered
22 custody of a licensed private nonprofit child-placing
23 agency, or federally recognized Indian tribe, as
24 defined by the federal Indian Child Welfare Act, have

1 established financial need according to the provisions
2 of paragraph 1 of subsection E of Section 2605 of this
3 title and standards and provisions promulgated by the
4 Oklahoma State Regents for Higher Education, or

5 c. if the student was adopted between thirteen (13) and
6 seventeen (17) years of age while in the permanent
7 custody of the Department of Human Services, in the
8 court-ordered custody of a licensed private nonprofit
9 child-placing agency, or federally recognized Indian
10 tribe, as defined by the federal Indian Child Welfare
11 Act, have established financial need according to the
12 provisions of paragraph 2 of subsection E of Section
13 2605 of this title and standards and provisions
14 promulgated by the Oklahoma State Regents for Higher
15 Education.

16 B. 1. A student shall be eligible to participate in the
17 Oklahoma Higher Learning Access Program and to qualify for an award
18 which includes payment of an amount equivalent to resident tuition
19 or other tuition pursuant to Section 2604 of this title for the
20 first semester or other academic unit of postsecondary enrollment if
21 the student meets all of the following criteria:

22 a. is a child of any person killed after January 1, 2000,
23 in the line of duty in any branch of the United States
24 Armed Forces or who died after January 1, 2000, as a

1 result of an injury sustained while in the line of
2 duty in any branch of the United States Armed Forces
3 and the person who was killed or died filed an
4 individual or joint Oklahoma income tax return for the
5 tax year prior to the year during which the person was
6 killed or died,

7 b. is a resident of this state or is enrolled in a school
8 district located in this state that serves students
9 who reside in both this state and an adjacent state
10 pursuant to a contract as authorized in Section 5-
11 117.1 of this title,

12 c. enrolls in an institution within The Oklahoma State
13 System of Higher Education prior to reaching the age
14 of twenty-one (21),

15 d. has satisfied admission standards as determined by the
16 Oklahoma State Regents for Higher Education for first-
17 time-entering students for the appropriate type of
18 institution, or, if attending a private institution,
19 has satisfied admission standards as determined by the
20 private institution. No student participating in the
21 Oklahoma Higher Learning Access Program shall be
22 admitted into an institution of higher education by
23 special admission standards,
24

1 e. has secured admission to, and enrolled in, an
2 institution which is a member of The Oklahoma State
3 System of Higher Education, a postsecondary
4 vocational-technical program offered by a technology
5 center school that meets the requirements to be
6 eligible for federal student financial aid, or a
7 private institution of higher learning located within
8 this state and accredited pursuant to Section 4103 of
9 this title, and

10 f. executes an agreement pursuant to subsection C of
11 Section 2605 of this title.

12 2. A student who is eligible to participate in the program
13 pursuant to this subsection shall not be required to meet the
14 eligibility requirements set forth in subsection A of this section.

15 C. To retain eligibility while pursuing the program of higher
16 learning in which enrolled, the student shall:

17 1. Meet the requirements for retention and degree completion as
18 established by the institution in which the student is enrolled;

19 2. Maintain good academic standing and satisfactory academic
20 progress according to standards of the Oklahoma State Regents for
21 Higher Education;

22 3. Maintain satisfactory academic progress as required for
23 eligibility for federal Title IV student financial aid programs.
24

1 The provisions of this paragraph shall become effective for the
2 2012-2013 school year;

3 4. Comply with the standards related to maintenance of
4 eligibility as promulgated by the Oklahoma State Regents for Higher
5 Education; and

6 5. Refrain from conduct that leads to expulsion or suspension
7 of more than one semester from an institution of higher education.
8 A student who violates the provisions of this paragraph shall
9 permanently lose eligibility for program benefits. The provisions
10 of this paragraph shall become effective January 1, 2008.

11 D. The Oklahoma State Regents for Higher Education and the
12 State Board of Career and Technology Education shall promulgate
13 rules relating to maintenance of eligibility under the Oklahoma
14 Higher Learning Access Act by a student.

15 E. It is the intent of the Legislature that students in the
16 ninth grade for the 1992-93 school year who are determined to be
17 eligible Oklahoma Higher Learning Access students pursuant to the
18 Oklahoma Higher Learning Access Act shall be the first students
19 eligible for benefits from the Oklahoma Higher Learning Access Trust
20 Fund.

21 F. The Oklahoma State Regents for Higher Education are
22 authorized to study, develop, and propose criteria for determining
23 award eligibility based upon the completion of seven semesters of
24 high school coursework by a student.

SECTION 2. This act shall become effective November 1, 2025.

60-1-10010 MJ 11/18/24